



Republic of the Philippines
Province of Sorsogon
MUNICIPALITY OF PRIETO DIAZ
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Office of the Sangguniang Bayan

EXCERPT FROM THE MINUTES OF THE REGULAR SESSION OF THE 12TH SANGGUNIANG BAYAN OF PRIETO DIAZ, SORSOGON HELD ON SEPTEMBER 8, 2025 AT ITS SESSION HALL

PRESENT:

Hon. Avon D. Domalaon, MPA	Municipal Vice Mayor/ Presiding Officer
Hon. Ryand D. Diño	Sangguniang Bayan Member
Hon. Vicente B. Bayoca	Sangguniang Bayan Member
Hon. Bienvenido D. Ayo, Jr.	Sangguniang Bayan Member
Hon. Joseph H. Yap, Jr.	Sangguniang Bayan Member
Hon. Alexander D. Destura	Sangguniang Bayan Member
Hon. Jo Madel D. Domalaon	Sangguniang Bayan Member
Hon. Juan D. Ebid	Sangguniang Bayan Member
Hon. Lilia D. Oliveres	Sangguniang Bayan Member
Hon. Antonio J. Emano, Jr.	LNB Pres./S. B. Member
Hon. Rene Joseph D. Domasian	SKMF Pres./S. B. Member

ABSENT: None

RESOLUTION NO. 163-2025

Introduced by Hon. Joseph H. Yap, Jr.

A RESOLUTION ADOPTING THE RULES ON THE CONDUCT OF ADMINISTRATIVE INVESTIGATION BY THE SANGGUNIANG BAYAN OF PRIETO DIAZ, SORSOGON

WHEREAS, the Sangguniang Bayan is vested with the power to hear and decide complaints against erring barangay officials pursuant to Section 61 (c) of the Local Government Code of 1991;

WHEREAS, in order to achieve a just, expeditious, simplified and inexpensive determination of cases, it is necessary to adopt rules on the conduct of administrative investigation by the Sangguniang Bayan;

WHEREAS, on motion of Hon. Alexander Destura, duly seconded by Hon. Juan Ebid;

NOW, THEREFOR, be it as it is;

RESOLVED, AS IT IS HEREBY RESOLVED, to adopt the following rules on the conduct of administrative investigation by the Sangguniang Bayan of Prieto Diaz, Sorsogon;

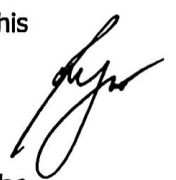
Section 1. Grounds for Disciplinary Actions. An elective local official may be disciplined or suspended from office in any of the following grounds:

- a. Disloyalty to the Republic of the Philippines;
- b. Culpable violation of the Constitution;
- c. Dishonesty, oppression, misconduct in office, gross negligence, or dereliction of duty;
- d. Commission of any offense involving moral turpitude or an offense punishable by at least *prision mayor*;
- e. Abuse of authority;
- f. Unauthorized absence of fifteen (15) consecutive working days;
- g. Application for, or acquisition of, foreign citizenship or residence of the status of an immigrant of another country; and
- h. Such other grounds as may be provided by Local Government Code; RA 6713; Administrative Code of 1987 and other general or special laws.

Section 2. Form of Administrative Complaint. A complaint against any erring elective barangay official shall be verified and shall be filed with the Office of the Secretary to the Sangguniang Bayan in twelve (12) copies. The complaint must be accompanied by the affidavits of the complainants and of his/her witnesses, if there is any.

The complaint should be written in clear, simple and concise language and in a systematic manner as to apprise to the respondent/s concerned of the nature and cause of the accusation against him and to enable him to intelligently prepare his defense or answer. The verified complaint shall contain the following:

1. Full name and address of the complainant
2. Full name and address of the official/s complained of as well as his or their respective position or office in the barangay;
3. A narration of the relevant and material facts which show the acts or omissions allegedly committed by the respondent/s;
4. Certified true copies of the documentary evidences and affidavits of his witnesses, if any
5. Certification or statement of non-forum shopping



Section 3. Filing Fee. For every administrative complaint filed before the Sangguniang Bayan, a filing fee shall be paid to the Office of the Municipal Treasurer in the amount of P 1,000.00. The Secretary shall require the presentation of the official receipt before receiving the verified complaint.

Section 4. Calendar of Business. Upon receipt of the complaint, the Secretary shall include the same in the Calendar of Business of the regular session of the Sangguniang Bayan. The Sangguniang Bayan shall determine whether the complaint is sufficient in form and in substance and thereafter refer the same to the Committee on Rules and Good Government for possible amicable settlement.

Section 5. Committee on Administrative Investigation. The Committee on Administrative Investigation shall be organized for the purpose of conducting an investigation on the complaint, receive evidence and submit findings and recommendations to the Sangguniang Bayan.

It shall be composed of a Chairman and four (4) members to be elected by the members of the Sangguniang Bayan, or as may be determined by the council as a whole. The Chairman of the Committee shall preside during the investigation, sign orders and other legal processes, and rule and decide procedural and incidental matters.

Section 6. Answer. Upon referral to the committee, the Chairman shall require the respondent to submit his/her verified answers within fifteen (15) days from the receipt of the order together with the affidavits of his witnesses and other evidence and serve a copy of the same to the complainant.

The answer with the accompanying affidavits and other evidence shall be filed in twelve (12) copies with the Office of the Secretary to the Sangguniang Bayan and with proof that a copy of the same was served upon the complainant.

The committee shall commence the investigation within ten (10) days from the receipt of the answer.

Section 7. Effect of Failure to Answer. Unreasonable failure of the respondent to file his verified answer within the prescribed period shall be considered a waiver of his right to present evidence in his behalf.

The committee shall then receive the evidence for the complainant and thereafter, submits its findings and recommendations to the Sanggunian Bayan, based on the evidences presented.

Section 8. Preventive Suspension. Preventive suspension may be imposed by the Municipal Mayor at any time after the issues are joined, when the evidence of guilt is strong, and given the gravity of the offense, there is a great probability that the continuance in office of the respondent could influence the witnesses or pose a threat to the safety and integrity of the records and other evidence.

Any single preventive suspension of an elective official shall not extend beyond sixty (60) calendar days. In the event that several administrative cases filed against an elective local official, he cannot be placed under preventive suspension for more than ninety (90) days within a single year on the same ground or grounds existing and known at the time of the first suspension.

Upon expiration of the preventive suspension, the suspended elective official shall be deemed reinstated in office without prejudice to the continuation of the proceedings against him, which shall be terminated within one hundred twenty (120) days from the time he was formally notified of the case against him. If the delay in the proceedings of the case is due to his fault, neglect, or request, other than appeal duly filed, the duration of such delay shall be counted in computing the time of termination of the case.

Section 9. Rights of Respondent. The respondent shall be accorded full opportunity to appear and defend himself in person or by counsel, to confront and cross-examine the witnesses against him, and to require the attendance of witnesses and the production of documentary evidence in his favor through the compulsory process of *subpoena ad testificandum* or *subpoena duces tecum*.

Section 10. Preliminary Conference. After the last pleading has been served and filed the committee shall schedule the holding of the preliminary conference. During the preliminary conference, the investigation shall consider:

- a. The stipulation or admission of facts and of documents to avoid unnecessary proof;
- b. The simplification of issues;
- c. The limitation of the number of witnesses;
- d. The pre-marking of exhibits;

- e. The dates of subsequent hearings;
- f. The propriety of rendering decision based on pleadings, affidavits and position papers; and
- g. Such other matters as may aid in the prompt disposition of action.

Section 11. Appearance of Parties. The failure of the complainant to appear in the preliminary conference shall be a cause for the dismissal of his complaint.

Section 12. Order of the Investigation. The committee shall conduct the formal investigation in the following manner:

- a. Complainant shall adduce evidence to support his/her complaint;
- b. Defendant shall adduce evidence to support his/her defence;

The committee may allow the presentation of rebuttal evidence upon motion of the complainant. In such case, the defendant shall also have the opportunity to present sub-rebuttal evidence.

During the investigation, the affidavits submitted by the parties shall constitute the direct testimonies of the witnesses who executed the same. Witnesses who testified may be subjected to cross-examination, redirect and re-cross examination. Should the affiant fails to testify, his affidavit shall not be considered as competent evidence for the party presenting the affidavit, but the adverse party may utilize the same for any admissible purpose.

No witness shall be allowed to testify unless he had previously submitted an affidavit to the Sangguniang Bayan.

Section 13. Submission of Report, Decision of the Sangguniang Bayan. The investigation of the case shall be terminated within ninety (90) days from the start thereof. Within thirty (30) days after the end of the investigation, the Committee shall submit a report to the Sangguniang Bayan, stating its findings and recommendations.

The recommendation shall consist of whether based from the evidence presented and considered, there is substantial evidence to prove that the defendant is guilty of an administrative offense as to warrant the imposition of penalties otherwise exonerate the defendant of the offense charged.

The Sangguniang Bayan shall consider the report and a decision shall be rendered on the basis of such report stating clearly and distinctly the facts and the reasons for such decision. Copies of said decision shall immediately be furnished the respondent and all interested parties.

Section 14. Supplementary Provisions. Pertinent provisions in the Local Government Code (RA 7160), its implementing rules and regulations, and the Rules of Court shall be supplementary to these rules.

Section 15. Effectivity. These rules shall take effect immediately upon the adoption by the Sangguniang Bayan.

FINALLY RESOLVED, to transmit this resolution to all concerned for their information and appropriate action;

APPROVED UNANIMOUSLY.

I HEREBY CERTIFY TO THE CORRECTNESS OF THE FOREGOING.


BERNADETTE R. ESPEÑA-YAO
Secretary to the Sanguuniang Bayan

ATTESTED:


Hon. AVON D. DOMALAON, MPA
Municipal Vice Mayor/Presiding Officer